SIMPLEFLEX TERMS AND CONDITIONS

Introduction: This is an agreement for Gas Generation Service from XOOM Energy New Jersey, LLC ("XOOM" or "Company" or "us"). This Disclosure Statement/Terms and Conditions, and the accompanying Contract Summary set forth the terms and conditions of your agreement with XOOM for gas generation supply. XOOM is licensed by the New Jersey Public Utility Commission to offer and supply gas generation services in New Jersey. XOOM's license number is GSL – 0112. Your generation prices and charges will be set by us. The Public Utility Commission regulates distribution prices and services. The Federal Energy Regulatory Commission regulates transmission prices and services.

You will continue to receive your bill from your Gas Distribution Company (GDC) that will contain your GDC's charges and your charges from XOOM Energy New Jersey, and your GDC will continue to provide all emergency repairs and services.

Service & Term: The Term of this Agreement will begin with your first meter read by your GDC after your enrollment is accepted, and will continue for the Contract Term / Length set forth in the accompanying Contract Summary. There will be no charge for starting or stopping gas supply service, if done within the terms of this Agreement.

Acceptance of Enrollment: These terms and conditions are subject to you meeting all requirements of XOOM and your GDC to become enrolled with XOOM. You will be promptly notified with confirmation of your switch to XOOM in writing.

Right of Rescission: You will have seven (7) calendar days, starting from the date of your GDC's confirmation notice ("Cancellation Period"), to contact the GDC and cancel this contract without penalty or a cancellation fee. This Agreement does not become a legally binding contract until the cancellation period has expired.

GDC Services: XOOM is a Natural Gas Supplier and is not affiliated with your GDC. Your GDC will continue to deliver your gas, read your meter, make necessary repairs, and send you a bill. Your GDC will also respond to emergencies and provide other basic utility services as required. Please call your GDC in the event of an emergency such as a gas leak. XOOM Energy is not an agent of your GDC and your GDC will not be liable for any of XOOM Energy's acts, omissions, or representations.

Price: Your rate for gas purchases under this Agreement will be a variable price, per therm that may change on a monthly basis, plus taxes and fees, if applicable. This rate is set forth in your Contract Summary, which is incorporated into this Agreement. Your variable rate may fluctuate and may be higher or lower than your local utility. Your rate is based upon a number of factors, which may include but not be limited to, the fluctuation of wholesale commodity costs or other components of wholesale prices (including but not limited to capacity related costs, fluctuations in energy supply and demand, and weather patterns) and XOOM's pricing strategies. XOOM cannot guarantee savings over your Local Utility's rates for the any given month or for the entire term of this Agreement.

Moving: When moving to an address within your GDC's service territory, XOOM will make every effort to transfer your services to your new address provided that you notify XOOM within 48 hours of your move. If a transfer of service is not successful or you move to a location outside your GDC service territory, or a territory not serviced by XOOM, this Agreement will automatically terminate at no cost to you. Failure to notify XOOM of your move will be

considered a cancellation of this Agreement in accordance with its terms.

Death or Disability: If you become disabled or die, you, or your agent or successors can terminate this Agreement by giving 48-hours' notice to XOOM.

Termination: XOOM may cancel this Agreement by giving 30 days written notice of its intention to terminate, if you fail to comply with any of the terms and conditions of this Agreement, including payment, regardless of whether or not the reason for termination is remedied after notice. XOOM may cancel this Agreement if your usage of gas changes substantially. Termination may take two (2) or more billing cycles by your GDC, and while the cancellation is taking place, you are still responsible for paying for the gas you consume.

Credit, Payment and Collection: Your bill will be based on monthly meter readings provided to XOOM by your GDC. If there is an error in your meter reading, XOOM will adjust its bill to you upon your GDC providing a corrected meter reading to XOOM. You represent that you are financially able and willing to fulfill the terms and conditions of this Agreement and that you have not filed, are not in the process of filing or plan to begin any bankruptcy proceedings. Your first bill payment will be due twenty (20) days after your first meter read by your GDC. Bills not paid by their due date are subject to a late payment fee at the greater of the rate of 1.5%, or the maximum permitted by law, based on your total outstanding balance per month. XOOM will charge a $35 return check fee for all returned checks. In all events, you shall remain obligated to pay for all gas received by you and any interest, fees and penalties incurred by XOOM. You will also be responsible for all costs, including legal fees, associated with the collection of amounts owed to XOOM.

Customer Service, Dispute Resolution: If you have a question about your XOOM charges or service you may contact XOOM directly by calling 1-888-997-8979 during our service hours which are posted at www.xoomenergy.com; by sending a letter to: XOOM Energy New Jersey, LLC, 804 Carnegie Center, Princeton, NJ 08540 or by sending an email to customercare@xoomenergy.com. For questions about your GDC bill, please contact your GDC directly. See the Contract Summary for your GDC's contact information. XOOM will refer all complaints to a representative who will use reasonable efforts in good faith to reach a mutually satisfactory solution. If a resolution cannot be reached with your GDC or with XOOM, you may contact the New Jersey Board of Public Utilities for help, toll free, at 1-800-624-0241.

Assignment: This Agreement or any XOOM obligations under this Agreement are assignable by XOOM.

Service Complaints: For service problems you should contact your GDC directly. Your GDC's contact information is located above in the Contract Summary. IN THE EVENT OF A GAS-RELATED EMERGENCY, SUCH AS A GAS LEAK, PLEASE VACATE THE AREA BY A SAFE DISTANCE AND CALL YOUR GDC or 911.

Your Authorization to Release Your Information for Use and Sharing: By entering into this contract, you authorize us to act on your behalf under your utility's tariffs in accordance with the rules and regulations of the state public utility commission ("PUC") where you take service. You further acknowledge that this contract provides authorization for your local utility to release all information regarding your energy supply account(s) to us so we can provide the services described herein. This information may include, but is not limited to, usage information, billing determinants, bill cycle, budget billing status, address, account type, tax exemption status, rate service class, load profile, demand data, meter number, special account exceptions, public assistance status, existence of medical emergencies or disability, tax status and eligibility for economic development or other incentives, standard service status, electronic interval data when available, credit information when applicable, and all other data and

information permitted by law to be disclosed to us to provide our services.

We also obtain information about you as outlined in our privacy policy (posted on our website) such as when you voluntarily provide personal information to us, use our website or mobile applications, or when we add information about you to your account profile from publicly available sources.

We will maintain the confidentiality of your personal information including your name, address, telephone number, email, account numbers, energy usage and historic payment information as required by applicable PUC regulations as well as federal and state laws.

Our use and sharing of your information will be consistent with the purposes and uses disclosed in our privacy policy, as amended from time to time and posted on our website. Your information may be disclosed if required by law, such as pursuant to a lawfully issued subpoena or other legal process. Further, you understand that your information may be disclosed to an affiliate or a third-party to provide services or products to you, and any disclosure of such information will be made under confidentiality obligations not to disclose such information and to use it solely for the purpose of providing services to you or improved products to us. This authorization also allows us to contact you about our other products and services and to share information about your account with any designated rewards partner or with any affiliate, third-party vendor or marketing partner we use to provide energy services or energy-related services to you.

If you do not wish for us to use or share information about your account in the manner described above, you may cancel this contract by calling us at our contact information listed herein.

Miscellaneous: You will promptly notify XOOM if there is any substantial change in your gas consumption. For the purpose of accounting both parties accept the quantity, quality and measurements determined by your GDC. Except as provided by law, you will pay all taxes or other fees due and payable with respect to customer obligations under this Agreement. This Agreement shall be governed by the laws of New Jersey without recourse to such states choice of law rules. There may be a delay before your GDC switches your gas supply to XOOM. XOOM is not responsible for any such delay.

Billing: XOOM supply charges will appear as a line item on the bill you receive from your GDC. If your GDC removes your account from consolidated billing for any reason, XOOM reserves the right to bill you directly. Please contact XOOM and/or your GDC to see if budget billing is offered in your service territory. Accounts that utilize budget billing will receive a true-up at least once every 12-month period during your contract term.

Insolvency: You acknowledge and agree that this Agreement and the transaction(s) contemplated under this Agreement constitute a “forward contract” within the meaning of the United States Bankruptcy Code. To the fullest extent possible, you agree to waive the provisions afforded by Section 366 of the United States Bankruptcy Code and acknowledge that for purposes of the application of principles afforded “forward contracts” the provisions of Section 366 shall not apply to you or to this Agreement.

Limitation of Liability and Warranty: XOOM WILL NOT BE RESPONSIBLE FOR ANY SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES WHATSOEVER. XOOM DOES NOT PROVIDE ANY TYPE OF WARRANTY, EXPRESS OR IMPLIED, AND TO THE FULL EXTENT OF THE LAW, DISCLAIMS ANY WARRANTY OF MERCHANTABLITY OR FITNESS FOR A PARTICULAR PURPOSE.

Force Majeure/Uncontrollable Circumstances: XOOM will not be responsible for supplying gas in the event of

circumstances beyond its control such as events of Force Majeure, including but not limited to, acts of terrorism, sabotage, or acts of God. XOOM may cancel this Agreement if there is any change in regulation, law, pricing structure, tariff, or change in procedure required by any third party that results in XOOM being prevented, prohibited, or frustrated from carrying out the terms of this Agreement. XOOM may cancel this Agreement if your usage of natural gas changes substantially.

Cash Back Rewards Program Terms

Eligibility: Your rewards are offered by XOOM Energy Rewards are subject to the following terms and conditions. For purposes of receiving rewards, active accounts are defined as those (i) that are billing more than $0 and (ii) for which we have not received a request to discontinue (drop) service or change programs. XOOM Energy may at its discretion send a combined reward payment if you have more than one account enrolled. Rewards are also subject to the Terms and Conditions between XOOM Energy and you, including, but not limited to, all terms related to dispute resolution. XOOM Energy reserves the right to disqualify any account holder from participation in reward programs.

Rebate Information: Any tax liability relating to a rebate is your sole responsibility. XOOM Energy is not responsible for resolving any conflicting claims to rebates. Rebates may not be applied as credits or offsets to reduce the amount owed on your account. Rebates shall have no cash value until the rebates are issued. You have no property rights or other legal interest in rebates until rebates are received. You may not assign, transfer or pledge rebates. The terms and conditions of rebates may be modified or rebates may be discontinued at any time at XOOM Energy's sole discretion. If XOOM Energy discontinues the rebate programs, you will be eligible for a pro-rated rebate, based on the portion of your Program or Rebate Period that has been completed. However, if rebates are found to be in violation of any applicable law, then XOOM Energy will not have any obligation to provide any rebates to you.

Natural Gas Cash Back Information: Cash Back is a rebate program offered by XOOM Energy. Upon enrollment with SimpleFlex, your account will automatically be enrolled in the Cash Back rebate program, and you will become eligible to receive a 5% Cash Back rebate for every $1 spent on the supply portion of your monthly residential natural gas bills. To be eligible, you must remain active and in good standing on all qualifying accounts for 12 consecutive months.

For avoidance of doubt, should you choose to change your plan within one of the 12-month periods, you will forfeit all existing cash back values for that period. Similarly, your account must be in good standing with no past due billing at the time rebate is paid.

Your Cash Back rebate will be paid via check or rewards card and sent to the mailing address associated with your account after every 12 consecutive months of service on the SimpleFlex plan. Please allow 60 days after the close of every 12-month period to receive each rebate. Rebates will be paid via check and delivered to the mailing address on your account. Budget billing customers will be awarded based on the monthly budget billing amount, plus or minus any periodic reconciliation or true-up that is required.

Entire Agreement: This Agreement, including the Contract Summary and additional terms and conditions above, as well as your Enrollment form or Welcome letter, as applicable, constitutes the entire agreement and understanding between you and XOOM with respect to its subject matter and superseding all prior written and oral agreements and representations made with respect to such subject matter.



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